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Case Number: 25NNCV06763 Hearing Date: September 18, 2026 Dept: D

TENTATIVE RULING

Calendar: 2

Date: September 18, 2026

Case No: 25NNCV06763 Trial Date: Not yet set

Case Name: Siler v. White Pickle, LLC, et al.

DEMURRER AND MOTION TO STRIKE

[CCP § 430.10 subd. (e)]

Moving Party: Defendants, White Pickle LLC and Adam Grandmaison, erroneously sued as Adam Grandmaison dba No Jumper Podcast

Responding Party: Plaintiff, Eban Siler

RELIEF REQUESTED:

Sustain demurrer to Second Amended Complaint and strike the claims for punitive damages.

CAUSES OF ACTION: from Second Amended Complaint

1) Premises Liability

2) Negligence [Operational Negligence]

3) Negligent Retention, Negligent Entrustment and Negligent Supervision

4) Battery

REQUEST FOR JUDICIAL NOTICE:

The Court may take judicial notice of “[r]ecords of (1) any court of this state or (2) any court of record of the United States or of any state of the United States.” (Evidence Code, § 452, subd. (d).)

The court, however, may not take judicial notice of the truth of the contents of the documents. (*Herrera v. Deutsche Bank National Trust Co.* (2011) 196 Cal.App.4th 1366, 1375.) Documents are only judicially noticeable to show their existence and what orders were made such that the truth of the facts and findings within the documents are not judicially noticeable. (*Lockley v. Law Office of Cantrell, Green, Pekich, Cruz & McCort* (2001) 91 Cal.App.4th 875, 885.)

Pursuant to Defendants’ request, the Court takes judicial notice of the following: (1) Plaintiff Jermel Reed’s Second Amended Complaint for Damages, filed March 30, 2026, in *Jermel Reed v. White Pickle LLC, et al.*, Case No. 25NNCV05431; and (2) Notice of Ruling and Continuance of CMC and OSC re Related Case Determination, dated March 20, 2026, including the Court’s March 20, 2026 Minute Order in *Jermel Reed v. White Pickle LLC, et al.*, Case No. 25NNCV05431.

SUMMARY OF FACTS:

Eban Siler (“Plaintiff”) alleges that on December 26, 2024, he was on the premises located at 2508 N. Ontario St. in Burbank when he was assaulted and battered by agents/employees/guests/affiliates of Defendant White Pickle LLC (“WP”), owned/controlled by Defendant Adam Grandmaison (“Grandmaison”). Plaintiff also alleges that Defendants WP, Grandmaison, Cash Jones (also known as Luce Cannon, “Jones”), and Termain Williams (also known as Wack 100, “Williams”), by and through their agents/employees, intentionally touched Plaintiff without his consent such that he suffered multiple injuries to his body and face.

DEMURRER:

A demurrer for sufficiency tests whether the complaint states a cause of action. (*Hahn v. Mirda* (2007) 147 Cal.App.4th 740, 747; CCP, § 430.10, subd. (e).)

To sufficiently allege a cause of action, a complaint must allege all the ultimate facts—that is, the facts needed to establish each element of the cause of action pleaded. (*Committee on Children’s Television, Inc. v. General Foods Corp.* (1983) 35 Cal.3d 197, 212, superseded by statute as stated in *Branick v. Downey Savings & Loan Assn.* (2006) 39 Cal.4th 235, 242.) “[E]ach evidentiary fact that might eventually form part of the plaintiff’s proof need not be alleged.” (*C.A. v. William S. Hart Union High School Dist.* (2012) 53 Cal.4th 861, 872.)

In testing the sufficiency of the cause of action, the demurrer admits the truth of all material facts properly pleaded. (*Aubry v. Tri-City Hospital Dist.* (1992) 2 Cal.4th 962, 966-67.) Courts read the allegations liberally and in context. (*Taylor v. City of Los Angeles Dept. of Water and Power* (2006) 144 Cal.App.4th 1216, 1228, disapproved on other grounds, *Jones v. Lodge at Torrey Pines Partnership* (2008) 42 Cal.4th 1158, 1162.) A demurrer, however, “does not admit contentions, deductions or conclusions of fact or law.” (*Daar v. Yellow Cab Co.* (1967) 67 Cal.2d 695, 713.)

First Cause of Action, Premises Liability

The elements of a negligence claim and a premises liability claim are the same: a legal duty of care, breach of that duty, and proximate cause resulting in injury. (*Kesner v. Superior Court* (2016) 1 Cal.5th 1132, 1158.) Unlike the elements of breach, causation, and injury, all of which are fact-specific issues for the trier of fact, the existence and scope of duty are questions of law. (*Id.* at pp. 1142, 1144.)

California law requires landowners to maintain land in their possession and control in a reasonably safe condition. (*Ann M. v. Pacific Plaza Shopping Center* (1993) 6 Cal.4th 666, 674 [disapproved on other grounds in *Reid v. Google, Inc.* (2010) 50 Cal.4th 512, 527, fn. 5].) Moreover, “foreseeability is a ‘crucial factor’ in determining the existence and scope of a legal duty.” (*Delgado v. Trax Bar & Grill* (2005) 36 Cal.4th 224, 237, citing *Ann M.*, supra, 6 Cal.4th at pp. 674, 676.)

The Demurring Defendants, WP and Grandmaison, demur to the premises liability cause of action on grounds that: (i) they owed no legal duty to prevent third party criminal conduct; (ii) the SAC alleges neither misfeasance nor any special relationship that could create a legal duty; (iii) the SAC alleges no specific facts establishing the “extraordinarily high degree of foreseeability” required to hold WP and Grandmaison liable for third-party criminal acts; and (iv) the SAC fails to allege any defective, unsafe, or hazardous condition.

When analyzing duty in the context of third-party acts, as in cases of misfeasance or when a special relationship exists, “the court considers the foreseeability of risk from the third party conduct.” (*Melton v. Boustred* (2010) 183 Cal.App.4th 521, 532.) Generally, “a duty to take affirmative action to control the wrongful acts of a third party will be imposed only where such conduct can be reasonably anticipated.” (*Ann M. v. Pacific Plaza Shopping Center* (1993) 6 Cal.4th 666, 676, disapproved on other grounds in *Reid v. Google, Inc.* (2010) 50 Cal.4th 512, 527, fn. 5.) And “in the case of criminal conduct by a third party, an extraordinarily high degree of foreseeability is required to impose a duty on the landowner, in part because ‘it is difficult if not impossible in today’s society to predict when a criminal might strike.’ ” (*Garcia v. Paramount Citrus Assn., Inc.* (2008) 164 Cal.App.4th 1448, 1457, quoting *Wiener v. Southcoast Childcare Centers, Inc.* (2004) 32 Cal.4th 1138, 1150).)

“Misfeasance exists when the defendant is responsible for making the plaintiff’s position worse, i.e., defendant has created a risk.” (*Weirum v. RKO General, Inc.* (1975) 15 Cal.3d 40, 49.) A legal duty may arise from affirmative acts “where the defendant, through his or her own action (misfeasance) has made the plaintiff’s position worse and has created a foreseeable risk of harm from the third person. In such cases the question of duty is governed by the standards of ordinary care.” (*Pamela L. v. Farmer* (1980) 112 Cal.App.3d 206, 209; *Weirum*, supra, 15 Cal.3d at p. 49.)

Here, the SAC alleges that Defendants exercised control over who was invited to the subject premises, which individuals were permitted to participate in podcast activities and meetings, whether participants and invitees were separated or monitored, whether any security or supervision was provided, and whether business invitees were exposed to known dangerous individuals. (SAC, ¶ 17.) The SAC alleges that Jones and Williams “were regularly engaged podcast participants and business affiliates who were deliberately brought into Defendants’ business environment.” (SAC, ¶ 19.) The SAC alleges that “Jones and Williams had publicly claimed gang affiliations and had publicly known violent propensities” and that Defendants knew or should have known “of these dangerous propensities through their repeated on-air and off-air association with Jones and Williams, Grandmaison’s hosting of gang-affiliated guests on the No Jumper podcast and related media operations, their public statements and media appearances, and prior violent incidents occurring in connection with Defendants’ podcast and studio operations.” (SAC, ¶¶ 21-22.) The SAC further alleges that “Defendants allowed a post-podcast congregation of numerous associates, participants, and invitees in an unsecured exterior breezeway and parking area, and failed to control interactions or provide reasonable safeguards in that area.” (SAC, ¶ 24.) Lastly, the SAC alleges that “While Plaintiff was at the Subject Premises or in the course of leaving it, Plaintiff was violently attacked, beaten, struck, and battered by Jones, Williams, and other individuals acting in concert with them.” (SAC, ¶ 25.)

These assertions are insufficient to allege a legal duty owed by WP or Grandmaison under the circumstances. The Court accepts as true Plaintiff’s allegations that WP and Grandmaison exercised control over who was invited to the subject business premises, that Jones and Williams had publicly known violent propensities, and that WP and Grandmaison allowed podcast associates to congregate outside the studio post-podcast. However, WP and Grandmaison’s general awareness of Jones’ and Williams’ violent propensities and permission for them to conduct podcast business at the studio did not create the peril that harmed Plaintiff.

There are no allegations that WP or Grandmaison took any actions to stimulate criminal conduct. There is nothing inherently risky about recording a podcast. There are no allegations or inferences that violence was a necessary component of the podcast event or that WP or Grandmaison encouraged the attack. There are no allegations that WP or Grandmaison ordered Jones and Williams to commit the assault, were present at the scene of the incident, or were in any way involved in the attack. Rather, based on the allegations in the SAC, Plaintiff's theory of liability is that Plaintiff, Jones and Williams were invitees at property owned or controlled by WP and Grandmaison and that WP and Grandmaison did not have adequate security measures in place. Such allegations do not constitute misfeasance.

Thus, Plaintiff has not alleged facts demonstrating that WP or Grandmaison owed a duty of care to protect Plaintiff from third-party criminal conduct.

In the opposition, Plaintiff asserts that the police report for the incident states that "Grandmaison had hosted numerous admitted Blood and Crip gang members on his show, some of whom had become violent against Grandmaison or others present at the podcast studio during interviews." (Opp., p. 2:22-24.) This allegation, however, is not contained in the SAC, and the Court therefore cannot consider it in ruling on the demurrer. Nevertheless, Plaintiff has demonstrated a manner in which the SAC can be amended that could change the legal effect of the pleading.

Accordingly, the demurrer to the first cause of action is SUSTAINED.

Second Cause of Action, Operational Negligence

The necessary elements for negligence are: (1) that the defendant owed a legal duty to the plaintiff to use due care; (2) a breach of that duty; (3) causation; and (4) damages to the plaintiff. (County of Santa Clara v. Atlantic Richfield Co. (2006) 137 Cal.App.4th 292, 318.)

For the same reasons as discussed above, the Court finds that Plaintiff has not sufficiently alleged that WP or Grandmaison owed a duty of care under the circumstances here.

The demurrer to the second cause of action is SUSTAINED.

Third Cause of Action, Negligent Hiring/Retention/ Supervision

The elements of a cause of action for negligent hiring, retention, or supervision are: (1) the employer's hiring, retaining, or supervising an employee; (2) the employee was incompetent or unfit; (3) the employer had reason to believe undue risk of harm would exist because of the employment; and (4) harm occurs. (Evan F. v. Hughson United Methodist Church (1992) 8 Cal.App.4th 828, 836-837.)

The SAC alleges that Jones and Williams were each a "retained podcast participant, affiliate, associate, invitee, representative, and/or agent" of WP and Grandmaison. (SAC, ¶¶ 4-5.) The SAC further alleges that "Defendants retained, authorized, and permitted Jones and Williams to participate in Defendants' business operations and to interact with invitees at the Subject Premises." (SAC, ¶ 45.) These allegations are unclear as to whether Jones and Williams were actually WP or Grandmaison's employees or merely guests or affiliates present at the property. The SAC does not sufficiently allege that the assailants were acting under the employment, directive, control or authorization of WP or Grandmaison such that they could be held liable for negligently hiring, retaining or supervising them.

Thus, the demurrer to the third cause of action is SUSTAINED.

MOTION TO STRIKE:

The court may, upon a motion or at any time in its discretion and upon terms it deems proper: (a) strike out any irrelevant, false, or improper matter inserted in any pleading; or (b) strike out all or any part of any pleading not drawn or filed in conformity with the laws of California, a court rule, or an order of the court. (CCP § 436, subds. (a), (b); *Stafford v. Shultz* (1954) 42 Cal.2d 767, 782 ["Matter in a pleading which is not essential to the claim is surplusage; probative facts are surplusage and may be stricken out or disregarded"].)

Because the Court has sustained the Demurrer in its entirety, the motion to strike is MOOT.

RULING:

Defendants White Pickle LLC and Adam Grandmaison's Demurrer is SUSTAINED, with 15 days leave to amend.

The motion to strike is MOOT.

DEPARTMENT D IS CONTINUING TO CONDUCT AND ENCOURAGE

VIDEO APPEARANCES

If you wish to appear remotely on LACourtConnect, you may register by visiting www.lacourt.ca.gov to schedule a remote appearance. Please note that LACourtConnect offers free audio and video appearances. Department D is now requiring either live or VIDEO appearances, not audio appearances.